

against him, as judge, for anything so done by him in that capacity, although there might be a mistaken opinion in respect either of fact or of law.

Upon this point leave was reserved to the defendant to move to enter the verdict for him.

In pursuance of this leave, this rule was obtained; and, after careful attention to the arguments and authorities, we have come to the conclusion that it should be made absolute.

We are of opinion, that, as the charter in express terms invests the vice chancellor with authority to punish, by imprisonment or otherwise as he should think fit, he thereby became invested with judicial authority, and a judge of record, and entitled to all the protection attached by law to the judicial office: and, although it does not appear to us to be essential for the defence to rely on his being a judge of a court of record, we are of opinion, that, when he was so impowered, he thereby became a judge of a court of record, entitled to the protection attached by law to that office. One important practical consequence resulting from the vice-chancellor being considered as a judge of a court of record is this, that the proceedings before him can be proved or disproved by the record thereof only, which record may be made up at any time, whenever it may become necessary to establish an issue duly raised.

In the present case, the plaintiff took issue upon the facts tried by a jury, and did not take any issue upon the record of the alleged proceedings, which [548] would be properly triable by the court upon inspection of the record after it had been brought here by certiorari.

We are further of opinion that the jurisdiction to hear and determine and pass sentence of imprisonment attached when the proctors, being officers of the university, brought before the vice-chancellor for adjudication a person found by them in Cambridge, and apprehended by them there as being a person suspected of evil, within the meaning of the charter; that, as the charter defines no form of proceeding, either for the hearing, or the determination, or the committal, an action of trespass could not be sustained for any of the judicial acts complained of. The authorities support this opinion.

The case of *Groenvelt v. Burwell*, 1 Ld. Raym. 454, bears a strong analogy to the present. There, the declaration was for false imprisonment. The justification shewed that a charter of Henry VIII., confirmed by statute, invested the censors of the College of Physicians with authority to supervise all physicians practising medicine in London, and to punish them for bad practice, by fine and imprisonment; that the plaintiff used the faculty of medicine in London, and attended a patient, and treated her unskilfully; that a complaint was made to the censors, who inquired into it, and heard witnesses and the plaintiff, and adjudged him guilty of bad practice, and sentenced him to imprisonment. The plaintiff argued that the plea was bad because it did not shew sufficient jurisdiction in the censors. But Holt, C. J., delivering the judgment of the court decided that the censors had entitled themselves to a sufficient jurisdiction,—first, over the person of the plaintiff, because he had practised in London,—secondly, over the subject-matter, viz. the unskilful administration of physic,—thirdly, over the fact for [549] which he was punished, because it was committed within the jurisdiction, viz. in London: and he goes on to say, that, where a man has jurisdiction over another man in all these particulars, it is apparent, that, whether the matter of fact be such as is alleged or not, it is not traversable, but the plaintiff is concluded. This judgment applies to the plea now in question. The vice chancellor has the same power of adjudication over the persons apprehended in Cambridge by the proctors, as the censors had over persons practising medicine in London; also the same power over the subject-matter, viz. the liability of the plaintiff to be apprehended on the ground stated in the plea, as the censors had over the unskilful administrators of physic; also the same power in respect of the place, viz. Cambridge, as the censors had in respect of London. Lord Holt further says that the fact of which the plaintiff is convicted is not traversable, because the authority of the defendants is absolute to hear and determine the offence, and that persons who are judges by law shall not be liable to have their judgments examined in actions brought against them. He further shews, by authorities, that a jurisdiction to fine and imprison, created by statute, is a court of record. Upon these principles, he answers all the objections made in that case to the course of proceeding, and, among others, the objection that the witnesses had not been examined on oath.

The rule that a judicial officer cannot be sued for an adjudication according to the